

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:
Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No. 1107 of 2015

Md. Tobarak Hossain
..... Petitioner

-Versus-

Md. Neksar Uddin and others
..... Opposite Parties

Mr. Muzahar Hossain, Advocate
..... For the Petitioner

Heard and Judgment **on 15.02.2016.**

At the instance of the petitioner, Tobarak Hossain, this Rule has been issued calling upon the opposite parties to show cause as to why the judgment and dated 03.08.2010 passed by the Additional District Judge, 1st Court, Rangpur in Miscellaneous Case No. 11 of 2005 arising out of order Nos. 32 and 35 dated 25.04.2005 and 19.06. 2005 respectively passed in Other Class Appeal No. 110 of 2002 dismissing the appeal for default and thereby affirming the judgment and decree dated 29.05. 2002 (decree signed on 04.06.2002) passed by the Assistant Judge, Taragonj, Rangpur in Other Class Suit No.17 of 2000 dismissing the suit should not be set aside.

The relevant facts for disposal of the Rule, inter alia, are that the present petitioner as the plaintiff filed the Title Suit No. 17 of 2000 in the Court of Assistant Judge, Taragonj, Rangpur with a prayer for partition regarding the scheduled land-in- question.

The said suit was contested by the defendant Nos. 14, 17 and 18. The learned Trial Court heard both the parties and took deposition on behalf of the respective parties and thereafter dismissed the suit by the judgment dated 29.05.2002 and the decree signed on 04.06.2002. Being aggrieved the present-petitioner as the appellant filed the Other Class Appeal No. 110 of 2002 in the court of learned District Judge, Rangpur which was transferred to the court of learned Additional District Judge, 1st court, Rangpur and a date was fixed for admission of the appeal on 25.04.2005 took the matter for admission but after repeated calls for hearing on behalf of the appellant no one appeared on behalf of the appellant for admission of the appeal, as such by the order No. 32 dated 25.04.2005 the appeal was dismissed for default.

The present petitioner thereafter filed an application under section 151 of the Code of Civil Procedure in the court of learned Additional District Judge, 1st Court, Rangpur which was rejected by the order No. 35 dated 19.06.2005. Against the said order the present petitioner filed an application under Order XLI, Rule 19 of the Code of Civil Procedure praying for the admission of the appeal which was disallowed on 03.08.2010. Being aggrieved by the said order petitioner filed this Revisional Application and Rule was issued thereupon.

Mr. Muzahar Hossain, the learned Advocate appearing for the petitioner submits that both the learned courts below failed to appreciate that the impugned orders dated 26.04.2005 and 19.05.2005 are purely fault of the learned Advocate for the petitioner for which the poor petitioner

should not be suffered and as such the learned courts below committed an error of law resulting in an error in the decision occasioning failure of justice in not allowing the application to adjudicate the matter by appeal hearing.

The learned Advocate further submits that both the learned courts below failed to appreciate that the petitioner has every right to get his share in the suit jote, but the learned trial court failed to understand it which should be decided by Higher Court and in doing so, due to fault of the learned Advocate for the petitioner, the appeal has been dismissed for default which is purely fault of the learned Advocate for the petitioner, and if the appeal will not be re-admitted the poor petitioner will suffer irreparable loss and injury and he will be prejudiced and as such the learned courts below committed an error of law resulting in an error in the decision occasioning failure of justice in not allowing the application and not adjudicating the matter by appeal hearing.

No one appears to oppose the Rule.

After considering the submissions made by the learned Advocate appearing for the petitioner and also considering the application filed under section 115(1) of the C.P.C. along with the Annexures therein, in particular, the impugned order passed dated 03.08.2010, it appears to me that the plaintiff-petitioner filed Other Class Suit No. 17 of 2000 for partition which was dismissed and being aggrieved the present petitioner filed an appeal but the appeal was not admitted on the date fixed because of the absence of the learned Advocate. Thereafter, the petitioner filed

application under section 151 of the Code of Civil Procedure for readmission which was rejected and thereafter the same petitioner filed an application under Order XLI Rule 19 for readmission of the appeal. From the above given circumstances, it is clear that the petitioner lost in the original suit by the judgment and decree on 29.05.2002 and appeal could not be admitted as no one appeared for presenting the appeal and thereafter the conducting the learned Advocate appeared with an application under section 151 of the Code of Civil Procedure and thereafter another application under Order XLI Rule 19 of the Code of Civil Procedure are admittedly unprofessional and undesirable conduct by undertaking courses of litigation wasting huge time of the Court. However, I have noticed the conduct of the learned Advocate as well as the conduct on the part of the petitioner. The appeal should be disposed of on contest by examining and reexamining the evidence adduced by the parties for the interest of justice. Therefore, I am inclined to make the Rule absolute.

Accordingly, I find merit in the Rule.

In the result the Rule is made Absolute.

However the present plaintiff-appellant-petitioner, Md. Tabarak Hossain, is hereby warned to be carefully about the hearing of the appeal in order to an expeditious disposal of the appeal.

The learned District Judge, 1st Court, Rangpur is hereby directed to take up the Other Class Appeal No. 110 of 2002 and fixed a date for admission/ readmission within one month from the date of receipt of this judgment and order. The learned Court is also directed to conclude the

hearing of the appeal within 3(three) months from the date of admission, if any, and also not to allow any time to the petitioner in the said appeal. If the present petitioner as an appellant fails to take necessary steps within the above stipulated period of time, the impugned judgment and decree dated 03.08.2010 would become operative and valid for the ends of justice.

The office is directed to communicate the judgment and order to the courts below immediately.